

Court No. - 3

Case :- WRIT - C No. - 30774 of 2023

Petitioner :- Misaryar Khan

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohd. Azam

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

The petitioner though has challenged the notice dated 04.08.2023 issued by respondent no.2- Excutive Engineer Vidyut Vitaran Khand, Bilaspur, District Rampur by which the demand of Rs.1,30,084/- was there, he is ready to pay the demanded money by way of installments.

Sri Pranjal Mehrotra, learned counsel for the Electricity Department has stated that petitioner has an efficacious remedy of getting the installment fixed under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

Under such circumstances, without going into further merits of the case, we direct that if the petitioner files an application under Clause of 6.14 of the U.P. Electricity Supply Code, 2005, then the same shall be considered and the installments shall be fixed. After the instalments are fixed and the petitioner deposits the first instalment, the electricity connection of the petitioner shall be restored.

With these observations, this writ petition is finally disposed of.

Order Date :- 18.9.2023

Raj